

**CHAPTER cxliii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Aberdeen Joint Passenger Station. [1st August 1904.] A.D. 1904.

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Aberdeen Joint Passenger Station Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

ABERDEEN JOINT PASSENGER STATION.

Provisional Order to extend the time limited by the Aberdeen Joint Passenger Station Act 1899 for the completion of certain works authorised by that Act to confirm the purchase of lands at Aberdeen by the Great North of Scotland Railway Company to enable that Company and the Caledonian Railway Company to enter into agreements with reference to such lands and for other purposes.

62 & 63 Vict.
c. ccxvi.

WHEREAS by the Aberdeen Joint Passenger Station Act 1899 the Caledonian Railway Company and the Great North of Scotland Railway Company (herein-after referred to as "the Great North Company") were empowered to alter and enlarge their joint passenger station at Aberdeen (herein-after referred to as "the joint passenger station") and the said two companies (herein-after referred to as "the Two Companies") were respectively empowered to construct the railways and works described in the said Act:

And whereas the time limited by the said Act for the completion of the said railways and works will expire on the ninth day of August one thousand nine hundred and four and it is expedient that the time so limited should be extended as herein-after provided:

And whereas by a disposition dated the tenth and twelfth days of November one thousand nine hundred and two and recorded as herein-after mentioned the lands and others therein described adjoining and on the east side of the joint passenger station were sold and disposed to the Great North Company and it is expedient that the Great North Company should be empowered to hold and dispose of the said lands and others and that the Two Companies should be empowered to enter into and carry into effect agreements as herein-after provided with reference to the ownership appropriation and use thereof:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament

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under the provisions of the Private Legislation Procedure (Scotland) Act 1899: A.D. 1904.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Aberdeen Joint Passenger Station Order 1904. Short title.

2. The provisions of Part II. (Extension of time) of the Railways Clauses Act 1863 are (except so far as the same are expressly varied by this Order) incorporated with and form part of this Order. Application of Part II. of Railways Clauses Act 1863.

3. The time limited by the Aberdeen Joint Passenger Station Act 1899 for the completion of Railway No. 2 and Railway No. 3 and the works in connexion therewith and the alteration and enlargement of the joint passenger station and the reconstruction and extension of the bridge carrying Fullerton Road over the railway of the Great North Company at Kittybrewster authorised by that Act is hereby extended for three years from the expiry of such time that is to say until the ninth day of August one thousand nine hundred and seven and sections 18 25 and 26 of that Act shall be read and have effect accordingly. Extension of time for completion of certain works under Act of 1899.

4. The purchase by the Great North Company of all and whole that piece of ground lands houses buildings and others in the county of Aberdeen and in the burgh or partly in the burgh of Aberdeen being the subjects contained and described in the disposition granted by Gavin Thomas Todd James Joseph Todd Gavin Hadden Martin Lindsay Hadden and Thomas Todd all manufacturers in Aberdeen and partners of the firm of Alexander Hadden & Sons manufacturers in Aberdeen and by said firm in favour of the said the Great North of Scotland Railway Company dated the tenth and twelfth days of November one thousand nine hundred and two and recorded in the Register of Sasines Reversions &c. kept for the burgh of Aberdeen the fifteenth day of November one thousand nine hundred and two and also recorded in the division of the General Register of Sasines applicable to the county of Aberdeen the twenty-sixth day of December one thousand nine hundred and two is hereby confirmed and made binding on the parties and the Great North Company may hold the said lands houses and others and may at any time and from time to time sell feu or lease the whole or any part thereof. Confirming purchase by Great North Company of certain lands at Aberdeen.

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A.D. 1904.

Agreements
between the
Two Com-
panies as to
lands at
Aberdeen.

Application
of funds of
the Two
Companies.

Provision as
to general
Railway
Acts.

Costs of
Order.

5. It shall be lawful for the Two Companies to enter into and carry into effect any agreement or agreements with respect to the ownership appropriation or use whether jointly or severally of the whole or any part of the lands and others referred to in the next preceding section of this Order.

6. The Two Companies or either of them may apply towards the purchase of the lands and others herein-before mentioned any capital or funds belonging to or authorised to be raised by them respectively which may not be required for the purposes for which the same were authorised to be raised or directed to be applied.

7. Nothing in this Order contained shall exempt the Two Companies or either of them or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

8. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Order and the Act confirming the same or otherwise in relation thereto shall be paid by the Two Companies in equal proportions.

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